

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306336	MAREZ VS TREMONT	MOTION TO BE RELIEVED AS COUNSEL FOR ARLENE MAREZ

Tentative Ruling:

The Motion is granted. The order shall be effective upon filing a proof of service of the final order.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402073	BOLORIZADEH VS NATIONAL DEFAULT SERVICING CORPORATION	MOTION TO COMPEL (X2)

Tentative Ruling:

Per the Joint Statement filed, the motions are withdrawn as resolved and neither party seeks sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2403818	SANCHEZ VS SMITH	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Smith contends the punitive damages allegations are insufficient under the heightened pleading standard because they are conclusory. Plaintiff disagrees. In reply, Smith cites *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82 to support his argument. However, *Dawes* is factually distinguishable because *Dawes* assessed punitive damages under the negligence framework of a vehicle collision arising from a driver who drove under the influence of alcohol. The Court drew a distinction between an ordinary drunk driving case and one that involved drunk driving while zigzagging through traffic at 65 miles per hour in a 35 MPH zone in a crowded beach at 1:30 in the afternoon on a Sunday in June such that the risk of injury to others from ordinary intoxicated driving is foreseeable but is not necessarily probable. (*Id.* at 85-92.) In contrast, here, battery and IIED are intentional torts. Thus, Smith's reliance on *Dawes* is misplaced.

Here, the FAC alleges that on July 10, 2022, Smith was at the Premises as a security guard acting within the scope of his employment with Big Will's, driving a car conducting patrol. (FAC ¶¶24, 26.) Plaintiff was walking on the sidewalk that same day around midnight. (*Id.* at ¶25.) It is alleged that Smith "attacked and physically assaulted Plaintiff by accelerating his vehicle directly into the right side of Plaintiffs (sic) body, dragging him beneath the vehicle and ultimately propelling him into the pavement where

he landed on his head, causing severe and permanent injuries.” (*Id.* at ¶¶27.) Plaintiff alleges Defendants’ conduct, including Smith’s, “constitutes malice, oppression, and/or fraud.” (*Id.* at ¶¶34-36, 95.) “Smith’s conduct was willful, malicious, and designed to harm Plaintiff, and constitutes the type of reprehensible conduct for which punitive damages are appropriate.” (*Id.* at ¶36.) Plaintiff alleges Smith acted reckless and/or with the deliberate intent to harm Plaintiff and is directly liable for the IIED arising from Smith’s extreme and outrageous unprovoked attack. (*Id.* at ¶89.) As to the battery, the FAC alleges Smith intentionally, and unprovoked, assaulted and battered Plaintiff and accelerated his car into the right side of Plaintiff’s body. (*Id.* at ¶¶93-94.)

Taking the allegations as true for purposes of a motion to strike, the FAC, through paragraphs of incorporation, alleges specific factual allegations that Smith acted with oppression, fraud and malice and is therefore not mere legal conclusions. (*Brousseau v. Jarret* (1977) 73 Cal.App.3d 864.) As such, the Court **DENIES** the motion to strike punitive damages.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ vs LOPEZ	MOTION APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM

Tentative Ruling:

The Application is denied.